HRMA Board Cheat Sheet

Plain-English summary — not legal advice. The recorded documents control. Details, conditions and book/page citations: HRMA Board Quick Reference.

CI Cert. of Inc. · **D88** 1988 Declaration · **DR** Decl. of Restrictions · **BL** By-Laws · **EA** Easement. Citation form: (DR V§6 p9) = Decl. of Restrictions Art. V §6, original page 9; (D88 ¶6(d) pp3–4); (CI Seventh p2); (BL "Vacancies" p4).

Money

- **Annual amount** — Board fixes it before March 1; same rate for every lot (BL V§2(c)(i) p4; DR V§3 p8); CI says at the Board meeting before the annual meeting (CI Seventh p2) (conflict)
- **Changing it** — "any change" needs 2/3 of Class A members present at a meeting called for that purpose (DR V§3 p8) (conflict)
- **Due** — March 1; year runs March 1 to February 28 (DR V§4 p9)
- **Discount** — 20% if the treasurer receives payment "prior to the thirty-first day of March" (DR V§5 p9) (unclear)
- **Delinquent** — unpaid before April 1 (DR V§6 p9); 1988 wording differs (D88 ¶6(d) pp3–4) (conflict)
- **Interest** — Delaware legal rate from the due date, plus collection costs and reasonable attorney's fees; no late fee (DR V§6 p9)
- **Lien** — continuing lien, always behind any mortgage; HRMA may sue the owner personally or foreclose in court (DR V§6 pp9–10)
- **Status certificate** — written request from an owner or certifying attorney, plus $10.00; not mailed within 5 business days of receipt = all assessments deemed paid in full "within the discounted period" (DR V§7 pp10–11) (conflict)

Meetings & elections

- **Annual meeting** — first Tuesday in March, 8:00 p.m. (BL IV§1 p2)
- **Notice** — in person or by mail, 10 to 50 days ahead, stating the purposes (BL IV§3 pp2–3)
- **Quorum** — 60% of the total membership vote, in person or by proxy (BL IV§4 p3)
- **Proxies** — written; void if given more than 11 months before the meeting (BL IV§4 p3)
- **Ballots** — mailed at least 14 days before the return date, which is no later than the day before the meeting (BL VII§4 pp5–6)
- **Count** — 3-person Election Committee; most votes wins; keep ballots 90 days (BL VII§1 p5; VII§6 p6)

Board & officers

- **Size** — 3 or more directors; term not stated (BL V§1 p3)
- **Quorum** — majority of the Board (BL VI§5 p5)
- **Regular meetings** — first Tuesday of June, September and December, 8:00 p.m. (BL VI§2 p4)
- **Absences** — Board may declare a seat vacant at the director's third consecutive missed regular meeting (BL V§1(e) p3)
- **Vacancies** — remaining directors fill by majority; term differs between CI and BL (CI Seventh p2; BL "Vacancies" p4) (conflict)
- **Officers** — President and at least one VP must be directors (BL VIII§1 pp6–7)
- **Checks** — Treasurer plus the President or a VP (BL VIII§6 p7)

Architectural review

- **Who reviews** — the "Declarant," which may assign review to the Board; no assignment in these files (DR II§2 p6) (unclear)
- **Approval first** — written approval before starting any building, shed, dish, fence, wall, pool, solar panel (unless inside a privacy fence) or other construction, or any exterior color, grade or drainage change (DR II§1 pp5–6)
- **30 days** — no decision within 30 days of submission = approved (DR II§1 p6)
- **Appeal** — meet the applicant within 2 weeks of the written appeal; written decision within 30 days after that meeting, or the rejection is cancelled (DR II§2 p6)

Use restrictions

- **Sheds** — 120 sq ft max, behind the house's rear-most wall, approval needed; no prefabricated metal sheds (DR I§1 p2)
- **Fences** — pressure-treated wood only, approval needed; 6 ft between lots, 4 ft others; none within 15 ft of the rear line, with exceptions (DR I§9 p4)
- **Pools** — no above-ground; in-ground with approval (DR I§11 p4)
- **Vehicles** — trucks, boats, trailers, campers only in an enclosed garage; pickups to 3/4 ton and enclosed vans to 10,000 lbs G.V.W., 7 ft tall max, in garage or driveway, not the street (DR I§7 p3)
- **Signs** — only one "For Sale" sign, 6 sq ft max (DR I§8 p3)
- **Dishes and antennas** — dish 4 ft max, approved, inside a privacy fence; antenna on the house, 10 ft max above the roof peak (DR I§5 p3)
- **Pets** — household pets only; dogs not outside 10:00 p.m.–6:00 a.m. unless with a responsible person (DR I§3 pp2–3)
- **Trash** — enclosed, out of sight; at the curb only temporarily on collection days (DR I§6 p3)
- **Power equipment** — not before 7:00 a.m. or after 9:00 p.m. (DR I§14 p5)
- **Windows** — shades, curtains and blinds white or off-white (DR I§18 p5)

Enforcement

- **Who sues** — the Declarant or any owner; no assignment to HRMA in these files (DR VIII pp12–13) (unclear)
- **Remedies** — court order, damages or lien enforcement; loser pays reasonable attorney's fees unless the court orders otherwise (DR VIII pp12–13)
- **No waiver** — delay doesn't waive a rule (DR VIII p12)
- **Not provided** — fines, or a hearing before enforcing use rules

Changing the documents

- **DR** — signed by record owners of 2/3 of the lots, then recorded (DR VI p11)
- **D88** — needs New Castle County Council approval (D88 ¶16 pp6–7)
- **By-Laws** — BL says members; CI says Directors, and CI controls over BL (BL XII§1–§2 pp9–10; CI Sixth p2) (conflict)

Confirm with counsel

- **Powers** — was review or enforcement ever assigned to HRMA? (DR II§2 p6; DR VIII pp12–13)
- **By-Laws** — who amends them (CI Sixth p2; BL XII§1 pp9–10)
- **Assessments** — Board fixing vs. the 2/3 member vote; whether special assessments need a vote (DR V§3 p8; BL V§2(c)(ii) p4)